

MUTUAL NON-DISCLOSURE AGREEMENT

Template — fill in the highlighted fields in Part A before sending

This Mutual Non-Disclosure Agreement (the “Agreement”) is made between the two parties named in Part A (each a “Party”). It takes effect on the Effective Date in Part A.

The Parties want to discuss and evaluate the Purpose in Part A and will share confidential information to do so. They agree as follows.

Part A — Key details

1. Effective Date	[date]
2. MTR	[legal name of the MTR company] (“MTR”), registered at [registered address], registration no. [number]
3. Counterparty	[legal name] (the “Counterparty”), registered at [registered address], registration no. [number]
4. Purpose	Evaluating a possible business relationship between the Parties, which may include a demonstration, pilot, purchase or supply of MTR's MetriQ inspection system or other MTR products. [add details if needed]
5. Disclosure Period	[2] years from the Effective Date
6. Confidentiality Period	[3] years after the Disclosure Period ends (no end date for trade secrets — see clause 9.2)
7. Production Data for model improvement (clause 6.3)	[Not allowed] — or write “Allowed, anonymised”
8. Governing law and disputes (clause 11.8)	[Ontario, Canada — courts of Toronto] — or [Vietnam — Vietnam International Arbitration Centre (VIAC), Ho Chi Minh City]
9. Notices (clause 11.6)	MTR: [name, email] Counterparty: [name, email]

Part B — Terms

1. Confidential Information

- 1.1 “Confidential Information” means any information one Party (the “Discloser”) gives the other (the “Recipient”), before or after the Effective Date, in any form — spoken, written, electronic, or by showing equipment or a site — that is marked confidential or that a reasonable person would understand to be confidential. It includes:
- (a) from MTR: software, source code, AI models and model weights, algorithms, training methods and training data, system architecture, hardware designs, drawings, bills of materials, supplier details, test results, product plans, prices and business plans;

- (b) from the Counterparty: product samples, production processes, line layouts, quality specifications, defect criteria, and images, video and measurements of its products captured during a demonstration or pilot ("Production Data");
 - (c) from either Party: the fact and content of the discussions, and any notes, analyses or copies made from the information above.
- 1.2 Confidential Information does not include information the Recipient can show:
- (a) is or becomes public, other than through a breach of this Agreement;
 - (b) it lawfully knew, without a duty of confidence, before the Discloser gave it;
 - (c) it lawfully received from a third party who was free to share it; or
 - (d) it developed independently, without using the Discloser's Confidential Information.

2. Use and protection

- 2.1 The Recipient will use the Discloser's Confidential Information only for the Purpose.
- 2.2 The Recipient will keep it confidential and protect it with at least the care it uses for its own confidential information, and never less than reasonable care.
- 2.3 The Recipient may share it only with its directors, employees, contractors, professional advisers and potential investors or lenders who need it for the Purpose and are bound by confidentiality duties at least as strict as this Agreement. The Recipient is responsible for any breach by them.
- 2.4 The Recipient will tell the Discloser promptly in writing if it learns of any unauthorised use or disclosure, and will help limit the harm.

3. Disclosure required by law

- 3.1 If the law, a court or a regulator requires the Recipient to disclose Confidential Information, the Recipient may do so. Where the law allows, it will first notify the Discloser, help the Discloser seek protection, and disclose only what is required.

4. Equipment, software and samples

- 4.1 The Recipient will not reverse engineer, decompile, disassemble, copy or analyse the make-up of any hardware, software, AI model or sample provided by the Discloser, and will not try to extract source code, model weights or training data.
- 4.2 Equipment and samples remain the Discloser's property. The Recipient will return them on request, in the condition received except for normal wear.

5. No licence, no obligation

- 5.1 All Confidential Information and intellectual property remain the Discloser's property. This Agreement grants no licence or right except to use Confidential Information for the Purpose.
- 5.2 Confidential Information is provided "as is", without any warranty of accuracy or completeness.
- 5.3 Neither Party has to disclose any information or enter into any further agreement. Each Party may develop or buy products that compete with the other's, provided it does not use the other's Confidential Information.

6. Production Data

- 6.1 MTR may use Production Data only to set up, test, operate and demonstrate the MetriQ system for the Counterparty within the Purpose.
- 6.2 MTR will not show Production Data to any third party, or use it in marketing, without the Counterparty's written consent.
- 6.3 MTR will not use Production Data to train or improve AI models for anyone other than the Counterparty, unless Part A item 7 says "Allowed, anonymised". In that case MTR may use it only after removing anything that identifies the Counterparty, its products, brands or site.

7. Return and destruction

- 7.1 Within 15 days of the Discloser's written request, or of the end of the Disclosure Period, the Recipient will return or destroy the Discloser's Confidential Information and confirm this in writing if asked.
- 7.2 The Recipient may keep copies that the law requires it to keep, or that sit in routine electronic backups and cannot reasonably be deleted. Those copies stay subject to this Agreement.

8. Personal information

- 8.1 The Parties will avoid sharing personal information. If any is shared — for example people visible in Production Data — the Recipient will handle it in line with the privacy laws that apply to it and use it only for the Purpose.

9. Term

- 9.1 This Agreement covers information disclosed during the Disclosure Period in Part A. Either Party may end the Disclosure Period early with 30 days' written notice.
- 9.2 The Recipient's duties last for the Confidentiality Period in Part A. For trade secrets, source code, AI models and model weights, they last for as long as the information remains confidential.

10. Remedies

- 10.1 A breach of this Agreement may cause harm that money alone cannot repair. The Discloser may seek an injunction or other court order to stop a breach, in addition to any other remedy.

11. General

- 11.1 This Agreement is the entire agreement between the Parties on its subject and replaces any earlier understanding on it.
- 11.2 Changes are valid only if made in writing and signed by both Parties.
- 11.3 Neither Party may transfer this Agreement without the other's written consent, except to a successor of all or most of its business that agrees to be bound by it.
- 11.4 If any part of this Agreement is invalid, the rest stays in force.
- 11.5 A delay or failure to enforce a right is not a waiver of it.
- 11.6 Notices must be in writing and sent to the contacts in Part A item 9. Email counts as writing.
- 11.7 This Agreement may be signed in counterparts and electronically. Each signed copy is an original. If it is translated, the English version governs.
- 11.8 This Agreement is governed by the law named in Part A item 8, and disputes go to the courts or arbitration centre named there.

Signatures

Signed by the authorised representatives of the Parties on the dates below.

For MTR	For the Counterparty
Signature:	Signature:
Name:	Name:
Title:	Title:
Date:	Date: